

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 12, 2023, with this Agency by A.A.A. (hereinafter, the complainant) against the GENERAL DIRECTORATE OF THE GUARDIA CIVIL (hereinafter, the respondent) for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), applicable to the processing of the present complaint, in accordance with Article 52.2 of LO 7/2021, the following has been established:

FACTS

FIRST: The complainant exercised the right of access against the respondent without their request receiving the legally established response. The complainant states that through an electronic entry registration dated October 18, 2023, their legal representative requested access to their police records contained in the INTPOL file, providing a document designating a specific representative for the procedure, receiving an official letter dated November 2, 2023, informing them that "by virtue of Articles 14.2 and 3 of Law 39/2015, and as they are among the groups required to interact electronically, they are urged to process their request electronically (...) having to prove the representation through Electronic Power of Attorney Registration."

In response to the submitted request, they were urged to prove the representation, subsequently sending them a letter of withdrawal for not having remedied the situation. The complainant expresses their disagreement with the received letter, specifically with the request to prove the representation in accordance with electronic power of attorney, considering that the submission of the handwritten document designating the representative is legally valid.

The complainant's representative adds that the complainant is in an irregular stay, and therefore cannot prove their representation through electronic power of attorney, as they do not have a digital certificate or a valid document in Spain to access the electronic headquarters of public administrations since they only have a passport, so this new requirement from the respondent translates into the impossibility for an irregular citizen to access their police records.

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Additionally, they provide the Official Letter dated January 2, 2024, where they are declared withdrawn from the request within this file, as more than ten days have passed since the Administration required the remedy of their request, proceeding to archive the proceedings.

SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent was granted a hearing period of ten working days to present any allegations they deemed appropriate.

The respondent replied to this Agency referring to what had already been previously answered to the complainant. According to the respondent, the complaint has not been presented through the appropriate channel, since, as it is a lawyer representing the complainant, they must interact with the administration electronically in accordance with the applicable regulations. They also state that the representation of the complainant by their lawyer is not adequately proven.

THIRD: After examining the document submitted by the respondent, it was forwarded to the complainant, so that, within fifteen working days, they could formulate any allegations they deemed appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

FIRST: The Director of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints submitted to the Spanish Agency for Data Protection, which consists of forwarding them to the data protection delegates designated by the controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze these complaints and respond within one month, prior to the admission of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to prove that they had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

On February 26, 2024, for the purposes provided in Article 64.2 of the LOPDGDD, the complaint presented was admitted for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the right established in Article 22 of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request...”

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Request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 shall be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their claim accepted.

II

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data, when the processing of data is aimed at the purposes indicated in Article 1 of Law 7/2021, are regulated in Articles 21, 22, and 23 of that law. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing. The formal aspects related to the exercise of these rights are established in Article 20 of Law 7/2021.

The communication addressed to the interested party regarding their request must be expressed in a concise, intelligible manner, easily accessible, and with clear and simple language for all individuals, including those with disabilities.

On the other hand, the right of access is regulated in Article 22 of the aforementioned Law 7/2021 in the following terms:

Article 22. Right of the interested party to access their personal data.

1. The interested party shall have the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed. If the processing is confirmed, the interested party shall have the right to access such personal data, as well as the following information:

- a) The purposes and legal basis of the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been communicated, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period of the personal data, when possible, or, if not, the criteria used to determine such period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal

data concerning the interested party or the limitation of its processing.

f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.

g) The communication of the personal data being processed, as well as any available information about its origin, without revealing the identity of any individual, especially in the case of confidential sources.

2. When the controller processes a large amount of information concerning the interested party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may require the interested party to specify the request within ten days.

3. The right of access shall be deemed granted if the data controller provides the interested party with a remote, direct, and secure system that permanently guarantees access to all their personal data. The notification informing the interested party of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in paragraph 1, the interested party shall have the right to request it.

4. When the interested party chooses a means other than that offered which incurs a disproportionate cost, the request will be considered excessive, and the interested party will bear the excess cost that their choice entails. In this case, the data controller shall only be required to satisfy the right of access through the proposed means without undue delay. If the interested party does not bear the excess cost, access will be provided through the means initially proposed by the data controller.

For its part, Article 20.6 of Law 7/2021 establishes:

When the data controller has reasonable doubts about the identity of the individual making the request referred to in Articles 22 and 23, they shall request that the individual provide the additional information necessary to confirm their identity within ten days. If this information is not provided within that period, the request will be considered withdrawn by means of a reasoned resolution. The period referred to in paragraph 4 shall begin to be counted from the date on which such additional information is provided.

III

Conclusion

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, given that one of the arguments of the responding party is that the representation of the claimant is not adequately accredited and given that the rights being requested are personal rights, this Agency shares this argument and considers that the claim must be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against D.G. OF THE CIVIL GUARD.

SECOND: TO NOTIFY this resolution to A.A.A. and to D.G. OF THE CIVIL GUARD.

In accordance with the provisions of Article 50 of the LOPDGDD, this document

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The resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and subsection 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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